

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2835

By: Burns

AS INTRODUCED

An Act relating to counties and county officers; amending 19 O.S. 2021, Section 215.20, which relates to election of district attorney; directing for nonpartisan elections of district attorneys; amending 19 O.S. 2021, Section 510, which relates to qualifications of county sheriff; directing for nonpartisan elections of county sheriffs; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 19 O.S. 2021, Section 215.20, is amended to read as follows:

Section 215.20. A. At the primaries and general elections held in 1966, and each four (4) years thereafter, there shall be nominated and elected in each and every district attorney's district in the State of Oklahoma, a district attorney, who shall hold office for a term of four (4) years, beginning on the first Monday of January following ~~his~~ their election, and until ~~his~~ their successor is elected and qualified.

B. District attorney elections shall be nonpartisan, and all candidates shall file as independent candidates. No primary

1 elections shall be held in a nonpartisan election. Each candidate
2 shall appear on the ballot as an independent candidate without party
3 or other designation.

4 SECTION 2. AMENDATORY 19 O.S. 2021, Section 510, is
5 amended to read as follows:

6 Section 510. A. Any person, otherwise qualified, who has been
7 a resident of the State of Oklahoma for two (2) years, ~~has been a~~
8 ~~registered voter of the party whose nomination he or she seeks, or a~~
9 ~~registered Independent,~~ within the county from which such person
10 seeks election for the six (6) months next preceding the first day
11 of the filing period, is at least twenty-five (25) years of age next
12 preceding the date of filing for office, possesses at least a high
13 school education and has served as a duly certified peace officer,
14 in a full-time capacity, for a period of four (4) years or more
15 prior to the date of filing for the office of county sheriff, shall
16 be eligible to hold the office of county sheriff or to file
17 therefor. Within twelve (12) months of taking office, all newly
18 elected or appointed sheriffs shall complete a sheriff's
19 administrative school which has been developed by the Oklahoma
20 Sheriffs' Association and which has been approved by the Council on
21 Law Enforcement Education and Training (CLEET). Failure to complete
22 the sheriff's administrative school within the specified period
23 shall preclude the new sheriff from obtaining CLEET certification.
24 New sheriffs with prior CLEET certification, who fail to attend the

1 sheriff's administrative school, shall have their CLEET
2 certification revoked. Provided, however, the provisions of this
3 section relating to qualifications shall not apply to any person
4 serving as a county sheriff or to any person previously serving as
5 county sheriff prior to the adoption of this statute.

6 B. County sheriff elections shall be nonpartisan, and all
7 candidates shall file as independent candidates. No primary
8 elections shall be held in a nonpartisan election. Each candidate
9 shall appear on the ballot as an independent candidate without party
10 or other designation.

11 C. For purposes of this section, "peace officer" shall mean a
12 full-time duly appointed or elected officer who is paid for working
13 more than twenty-five (25) hours per week and whose duties are to
14 preserve the public peace, protect life and property, prevent crime,
15 serve warrants, and enforce state, federal or military laws and
16 local ordinances of this state or any political subdivision thereof.

17 SECTION 3. This act shall become effective November 1, 2025.

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